TOWN OF MOUNT PLEASANST, SOUTH CAROLINA
BOARD OF ZONING APPEALS
AUGUST 31, 2026
MINUTES

Staff Report

Present: Stephen Wood, Chair, Giles Branch, Megan Stevens, Elliott Barrow, Brian Stress, Cheryll Woods-Flowers, Joan Spier.
Staff: Michael Robertson, Matt Simms, Brent Leary, Lynnette Lynes

Mr. Wood called the meeting to order at 6:00 pm.

A. Approval of Agenda

Mr. Wood moved for approval of the agenda. Mr. Branch seconded the motion. All in favor.

B. Approval of Minutes

Ms. Woods-Flowers moved for approval of the minutes. Mr. Branch seconded the motion. All in favor.

C. Public Comment
D. General Correspondence

There being no comments or correspondence, Mr. Wood continued with the agenda.

E. Executive Session for the Purpose of Receiving Legal Advice Related to Case V-17-26, 835 Pitt Street, TMS# 532-09-00-053

Ms. Stevens moved to convene into executive session for legal advice. Ms. Spier seconded the motion. All in favor.

The Board entered executive session at 6:03 pm for legal advice and reconvened at 6:13 pm. No action taken while in executive session.

F. Explanation of Procedures
G. Administration of Oath

Mr. Wood reviewed the procedures with the public and administered the oath to those speaking.

H. Business

1. **Case V-14-26, 843 Bridge Point Circle, TMS# 514-13-00-146, Request relief from the strict application of the standards in Table §156.039-1 R2 Dimensional Standards to allow a ten-foot (10') rear yard setback for a new detached house. The ordinance requires a twenty-five-foot (25') rear yard setback. Additionally, request relief from the strict application of §156.622(C)(1) to allow a critical area buffer width of ten feet (10'). The ordinance requires a minimum buffer width of twenty feet (20') and an average buffer width of thirty-five feet (35').** Correspondence

- Mr. Simms reviewed the staff comments with the Board.

- Ms. Liz Stanton, architect for the owner, reviewed the request with the Board.

- There being no comments or questions, Mr. Wood moved to deliberations.

- *Mr. Branch moved for approval of the variance based on the findings that it meets all of the required criteria to grant the variance in that approximately 50 feet of buildable area is lost with the Town's interpretation of state law pertaining to title to land below the mean high-water mark; the property is unique as the surrounding property was developed prior to the Town interpretation and if the interpretation was applied to these properties it would render them unbuildable; denial would prohibit the utilization of the property; and there would not be a detriment to the neighborhood as approval of the variance would bring the proposed home in a similar location of the other neighboring homes. Ms. Stevens seconded the motion. Motion passed on a 4 to 3 vote with Mr. Stress, Ms. Woods-Flowers, Mr. Branch, and Ms. Stevens in favor; Mr. Barrow, Ms. Spier and Mr. Wood opposed.*

2. **Case V-17-26 835 Pitt Street, TMS# 532-09-00-053 Request relief from the strict application of §156.218(G)(4)(b) to exclude covered porch areas from the Building Area Ratio (BAR) calculation. The ordinance requires covered porch areas to be included. Additionally, request relief from the strict application of §156.218(G)(4)(d) to allow less than ten percent (10%) of the BAR to be comprised of porches. The ordinance requires at least ten percent (10%) of the BAR to be comprised of porches.**

- Mr. Simms reviewed staff comments with the Board.

- Ms. Julie O'Conner, architect, reviewed the request with the Board. She stated that this request is a result of the mediation agreement reached with the Town.

- There being no comments, Mr. Wood moved to Board questions.

- Mr. Wood suggested that the application does not meet the third criteria as they are currently residing in the home. Ms. O'Connor suggested that if not approved it would unreasonably restrict the utilization of the property due to the defective architecture such as the location of the stairs, a bedroom that is difficult due to being

Mr. Wood closed public comments.

- *Mr. Barrow moved for denial of the variance based on the findings that the all of the criteria required to grant a variance, particularly the third criteria and denial would not prohibit or unreasonably restrict the utilization of the property because the property is currently being utilized and the existing home inhabited; while the layout is not ideal, the property is not unreasonably restricted; and the Board cannot change or broadly interpret state law. Ms. Woods-Flowers seconded the motion. Motion passed on a 5 to 2 vote with Mr. Stress, Ms. Woods-Flowers, Mr. Barrow, Ms. Spier, and Mr. Wood in favor; Mr. Branch and Ms. Stevens opposed.*

There being no further business, the meeting adjourned at 6:38 pm.

Submitted by,
L. Lynes
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